

as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both CRC 3.1380(c) and Local Rule of Court 3.04(A) require that a Mandatory Settlement Conference Statement be filed no later than five court days prior to the Mandatory Settlement Conference. The Mandatory Settlement Conference in this matter was to take place on May 18, 2026. The date was set at the time of filing as it was included in the Notice of All Purpose Assignment. Defendant had notice as the Notice of All Purpose Assignment was served with the Complaint and Summons. Neither party filed a written response to the Order to Show Cause. Without sufficient excuse for failing to timely file a Mandatory Settlement Conference Statement, monetary sanctions are imposed in the amount of \$250 against Plaintiff and counsel and \$250 against Defendant and counsel. The clerk is directed to issue separate Orders of Sanctions. The trial date of July 14, 2026 is confirmed.

MITCHELL, ET AL. VS. KNAPP

CASE NUMBER: 25CV-0208409

Tentative Ruling on Motion to Partially Reopen Expert Discovery: Defendant, Kandi Knapp, moves pursuant to CCP § 2024.050 to re-open discovery. This matter was set pursuant to a request for order shortening time. Plaintiffs' opposition was due on June 30, 2026, but was not served and filed until July 1, 2026. Despite Defendant's objection to the untimely filing, the Court in its discretion will consider the opposition.

Meet and Confer. CCP § 2024.050 requires a motion requesting to reopen discovery be accompanied by a meet and confer declaration. The Declaration of Courtney Wert indicates compliance with this requirement.

Merits. CCP § 2024.050(a) provides a court with discretion to grant leave to reopen discovery after a new trial date has been set. In exercising its discretion to grant or deny such a motion the Court should consider: 1) the necessity and reason for the discovery; 2) the diligence or lack of diligence in seeking the discovery or the hearing on the discovery motion; 3) any likelihood that permitting the discovery will prevent the case from going to trial; and 4) the length of the time elapsed between any date previously set, and the date present set, for the trial of the action. CCP § 2024.050(b).

This matter arises from a car accident which resulted in the death of the decedent. The parties have stipulated to liability and the only issue remaining is the determination of damages. Among other relief, Plaintiffs are suing for future wage loss, loss of future earning capacity, and non-economic damages for loss of love, companionship, care, comfort, and guidance. Defendant states that deposing the decedent's healthcare providers is necessary to determining the decedent's life expectancy and thus Plaintiffs' damages.

During discovery, Plaintiffs denied having knowledge about where the decedent received medical treatment prior to the incident. Defendant discovered that decedent was treated at Shasta Regional Medical Center ("SRMC") and Shasta Community Health through the review of Medi-Cal records received in March/April 2026. Defendant subsequently subpoenaed those records. Plaintiffs opposed the subpoenas and the parties entered a first look agreement on April 28, 2026. Defendant promptly reviewed the records upon receipt from Plaintiffs on June 12, 2026. While Defendant worked diligently to obtain the records from SRMC when it was discovered that the decedent was a patient there, it is unclear when the Medi-Cal records were requested and why they were not sought earlier during discovery. Defendant has not disclosed how many healthcare providers she seeks to depose or how the length of time needed to continue discovery related to these newly obtained records.

At the time this motion was set on a time shortened basis, trial was set to commence on July 7, 2026. When the order shortening time for this motion was heard, the Court alerted counsel that it was unlikely that the trial would proceed as scheduled due to the fact that the Court was engaged in another jury trial.

The Court remains engaged in the aforementioned jury trial, so the July 7, 2026, trial date has been vacated. In light of the fact that there is currently not a trial date set, permitting the additional requested discovery will not prevent the case from going to trial. Additionally, the Court finds the requested discovery is relevant to an

appropriate damage award given the impact decedent's medical conditions could have on his life expectancy.

Sanctions. Defendant requests sanctions in the amount of \$2,450 for attorney fees and costs for bringing the motion. CCP § 2024.050(c) states that "[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The Court will not impose sanctions, as, at the time Plaintiff opposed the motion, there was an upcoming trial date that Plaintiff wished to maintain. The Court finds this reason substantial justification for Plaintiff's opposition to the motion.

The motion is **GRANTED**. The Court orders discovery partially reopened to allow for depositions of decedent's health care providers at Shasta Regional Medical Center and Shasta Community Health. A proposed order was lodged with the Court and will be modified to reflect the Court's ruling.

PERRY VS. FARMER

CASE NUMBER: 26CH-0209631

Tentative Ruling on Motion for Attorney's Fees: Respondent Mark Farmer moves for recovery of attorney's fees. Petitioner Candilyn Perry was timely served with the motion by mail. However, the Opposition was untimely filed. The Opposition was filed on June 26, 2026 and a Supplemental Declaration was filed on June 29, 2026. The Opposition was due on June 22, 2026. CCP § 1005(b). This Court presided over the entirety of this case, including the trial, and recalls the underlying facts. Because the Opposition does not change the Court's tentative ruling, the Court will consider the late-filed Opposition. Respondent may still present oral argument at the time of the hearing.

CCP § 527.6 governs civil restraining orders. Subsection (s) provides that the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any. CCP § 527.6(s). "[A] prevailing defendant can recover attorney fees in an action for injunctive relief against harassment, even if the action was brought in good faith and is not frivolous, if the trial court decides in its discretion to award such fees." *Krug v. Maschmeier* (2009) 172 Cal. App. 4th 796, 798. "The recovery of attorney fees under subdivision (s) of section 527.6 is committed to the trial court's discretion." *Wash v. Banda-Wash* (2025) 108 Cal. App. 5th 561, 568. In determining the amount of attorney's fees to which a litigant is entitled, an experienced trial judge is the best judge of the value of professional services rendered in his or her court. *Granberry v. Islay Investments* (1995) 9 Cal. 4th 738, 752.

Respondent is the prevailing party here, which means the Court has discretion to award fees and costs. The Court recalls the trial in this matter and exercises its discretion to award fees and costs. Counsel for Respondent requests \$7,640. However, the declaration of counsel is insufficient to warrant the amount requested. Timothy M. Prentiss II declared that "I incurred attorney's fees as follows" and goes on to list 5 hours of clerical work billed at \$150 per hour, 18.2 hours of paralegal work billed at \$250 per hour, and 5.5 hours of legal work with 2.7 hours being billed at \$400 per hour and 2.8 hours being billed at \$425 per hour. While it is possible to include paralegal fees in an award of attorney fees, clerical or administrative tasks are not recoverable. *Collins v. City of Los Angeles* (2012) 205 Cal. App. 4th 140. No billing records have been provided to support the paralegal or attorney time. No evidence has been provided to support the hourly rates requested. Therefore, the Court is only able to award attorney's fees based on what the Court can tell from the file.

The trial in this matter was March 19, 2026. The trial started at 1:30 p.m. and court was adjourned at 2:59 p.m. The trial was heard at the same time as an Order to Show Cause Re: Sanctions that issued to Respondent and counsel for failure to file CH-800 as ordered on February 9, 2026. Respondent appeared on one prior occasion to trial which was trial readiness on February 2, 2026. The only other appearances were post trial when Respondent